

Court No. - 30

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4360 of 2016

Applicant :- Shesh Mani Patel

Opposite Party :- B.B. Singh, Exe. Engg., Purvanchal Electricity Supply, Jaunpur

Counsel for Applicant :- Hriday Narayan Pandey

Hon'ble Pankaj Naqvi, J.

Heard Shri H.N. Pandey learned counsel for applicant.

It is submitted that despite despatch of certified copy of the order dated 19.5.2016 in Writ-C No.23194 of 2016 to the opposite party by registered post on 7.6.2016 by which he was directed to decide the application of the applicant under clause 6.5 of U.P. Electricity Supply Code, 2005 within 4 weeks but despite expiry of the aforesaid period, no orders have been passed, which is in wilful/deliberate disobedience of order dated 19.5.2016.

Prima facie, contempt is made out against the opposite party.

Issue notice to opposite party.

List on **10.11.2016**. Opposite party need not appear at this stage.

The counter affidavit may be filed within the aforesaid period or else charges may be framed after summoning the noticee.

However, one more opportunity is granted to opposite party to comply with order within a month. In that eventuality, an affidavit of compliance may be filed.

The office may send a copy of this order along with the notice.

Order Date :- 2.9.2016

RS

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Shri Mahboob Ahmad, learned counsel for the opposite party submits that although he is ready with the compliance affidavit but he could not serve the same on the learned counsel for the applicant. He may do so within 3 days.

It is made clear that in the event no rebuttal is filed on or before the next date, the court may be constrained to pass appropriate orders.

List in the **week commencing 12.12.2016** showing the name of Shri Mamboob Ahmad as counsel for the opposite party.

Learned counsel for the opposite party is directed to communicate this order in writing to learned counsel for the applicant within 2 days.

Order Date :- 10.11.2016

RS